

INVITATION TO BID

**ITB26-6310-25B - FUEL BAY
OVERHEAD CANOPY
REPLACEMENT**

ITB NO.: TBD



CITY OF LAUDERDALE LAKES

Financial Services Department
4300 NW 36th Street
Lauderdale Lakes, FL 33319

Phone: [REDACTED]

Fax: [REDACTED]

Email: [REDACTED]

**ALL PROPOSALS WILL BE RECEIVED VIA THE CITY'S ePROCUREMENT
PORTAL AT: <https://procurement.opengov.com/portal/lauderdalelakes>**

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SOLICITATION INFORMATION**Solicitation Title: ITB26-6310-25B - Fuel Bay Overhead Canopy Replacement****Purpose/Description:**

The City of Lauderdale Lakes is seeking qualified, experienced, and licensed firm(s) to provide ITB26-6310-25B - Fuel Bay Overhead Canopy Replacement in accordance with the terms, conditions and specifications contained in this Invitation To Bid (ITB). Bids will be due via the City's eProcurement portal at <https://procurement.opengov.com/portal/lauderdalelakes> on or before **10:00 am at Friday, May 15, 2026**. Late Bids will not be accepted.

Bid Published:	April 22, 2026
Pre-Bid Conference (Mandatory):	April 30, 2026, 10:00am Lauderdale Lakes City Hall 4300 NW 36th Street Lauderdale Lakes, FL 33319 Gereffi Room, 2nd Floor
Deadline for Questions:	May 8, 2026, 5:00pm
ITB Close Date/Bids Due:	May 15, 2026, 10:00am
Anticipated Award Date:	June 9, 2026

Note:

*The City of Lauderdale Lakes reserves the right to delay and/or change the date for the Anticipated Award Date.

Point of Contact: Requests for Information related to this solicitation must be directed to:


Procurement Manager

Please submit all written questions via the City's eProcurement portal at <https://procurement.opengov.com/portal/lauderdalelakes>.

Questions will only be accepted via the City's eProcurement portal.

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TBD

ITB26-6310-25B - Fuel Bay Overhead Canopy Replacement
INVITATION TO BID (ITB)

The City of Lauderdale Lakes, Florida, hereinafter referred to as the "CITY", is hereby soliciting bids from qualified Contractors to provide **ITB26-6310-25B - Fuel Bay Overhead Canopy Replacement** in accordance with the terms and conditions and specifications contained in this **Invitation To Bid (ITB) No. TBD**. Bids are to be submitted via the City's eProcurement portal at <https://procurement.opengov.com/portal/lauderdalelakes> **until 10:00 am Local Time, on Friday, May 15, 2026**, at which time this ITB will be publicly declared closed.

Please submit Proposals electronically via the City's eProcurement portal at <https://procurement.opengov.com/portal/lauderdalelakes>. Hard copies of the bids or proposals are no longer accepted.

Solicitation documents shall be obtained via the eProcurement portal at <https://procurement.opengov.com/portal/lauderdalelakes>. Bidders who obtain solicitation documents from other sources than <https://procurement.opengov.com/portal/lauderdalelakes> are cautioned that the solicitation package may be incomplete. Furthermore, all addenda will be posted and disseminated via the portal. **Deadline for Receipt of Proposals: Friday, May 15, 2026 at 10:00 am.**

Pre-Bid Conference: A Mandatory pre-bid conference has been scheduled.

Electronic Proposal Openings. Please be advised that effective immediately, and until further notice, all Invitation to Bids, Request For Proposals, Request For Qualifications, and other solicitations led by the City of Lauderdale Lakes will be opened electronically via the eProcurement portal at the date and time indicated on the solicitation. All openings will be held on the <https://procurement.opengov.com/portal/lauderdalelakes> platform. The opening may be viewed in real time through a "Zoom Meeting" or similar type platform.

Bid Opening TBD ITB26-6310-25B - Fuel Bay Overhead Canopy Replacement. Friday, May 15, 2026, 10:00 am (America/New_York)

Please join my meeting from your computer, tablet or smartphone. Get the app now and be ready when your first meeting starts (<https://www.zoom.com/>)

PURCHASING@LAUDERDALELAKES is inviting you to a scheduled Zoom meeting.
Join Zoom Meeting

Meeting ID: [REDACTED]
Passcode: [REDACTED]

One tap mobile

[REDACTED]
[REDACTED]

Join by SIP

• [REDACTED]

Join instructions

<https://www.zoom.us/j/9605360000>
[REDACTED]

Bonding Requirements. This project requires a Bid Bond of 5% of the Bid amount. In addition, a Performance and Payment Bond at 100% of the contract amount is required.

Include a five percent (5%) Bid Bond. Failure to provide a Bid guarantee will result in automatic rejection of your Bid. All required Bonds must be submitted on the CITY'S Bond forms, included in this document. (Failure to properly complete and sign this document shall cause the Bid submittal to be rejected as non-responsive.) **As per section 5.1.2 of our Standard General Conditions, the Bond shall be payable to the CITY, and be at the sole cost of the CONTRACTOR.**

Acceptance and Rejections: The City of Lauderdale Lakes, Florida, reserves the right to reject any and all bids, waive informalities, re-advertise and award the Contract in its best interest.

Prohibition Against Lobbying: Please be advised that this solicitation is subject to the City of Lauderdale Lakes' Purchasing Code Section 82-366, Ethics in Public Contracting, prohibiting communication related to this solicitation except with the designated representative during the formal solicitation process.

City of Lauderdale Lakes, Florida

By: 

Mr. Aazam Piprawala, CERT SCM.

Procurement Manager, Financial Services

Advertisement Dates: April 24th, 2026 / April 26th, 2026

SCOPE OF SERVICES**Scope of Services****1. PROJECT INFORMATION**

Project Name: Fuel Bay Overhead Canopy Replacement

Location: Public Works Fuel Bay, City of Lauderdale Lakes

Owner: City of Lauderdale Lakes

This Scope of Work outlines the requirements for the demolition, removal, and replacement of the existing overhead fuel bay canopy at the City's Public Works facility. The work includes, but is not limited to, structural demolition, installation of new concrete footings, erection of a new canopy system with supporting columns and beams, and completion of all associated finishes.

2. GENERAL REQUIREMENTS

The Contractor shall provide all labor, materials, equipment, and supervision necessary to complete the project in its entirety. All work shall be performed in accordance with the following:

- Applicable federal, state, and local laws, codes, and regulations
- Approved construction drawings and specifications
- All permitting and inspection requirements
- City of Lauderdale Lakes standards, policies, and safety requirements

The Contractor shall be responsible for delivering a complete and fully functional installation.

3. SCOPE OF WORK**3.1 Removal and Disposal**

- a. The Contractor shall remove the existing overhead canopy structure located at the Public Works fuel bay and dispose of all materials in accordance with applicable regulations.
- b. Existing concrete footers and slabs associated with the current fuel dispenser system shall remain undisturbed. These elements are located beneath active fuel pumps and tanks and shall not be altered, removed, or impacted in any way.
- c. The Contractor shall reinstall or provide clearance height signage consistent with the existing canopy, including caution markings and lettering.

3.2 New Overhead Canopy and Footings

- a. The Contractor shall furnish and install a new overhead fuel bay canopy system, including four (4) reinforced concrete footings, each measuring 4 feet by 4 feet by 3 feet, in accordance with the approved construction drawings.

b. Roofing System:

The canopy roof shall consist of a 6-inch insulated roofing panel system designed for durability and weather resistance.

c. Footing Installation:

All new footings shall be located and constructed to avoid conflicts with existing underground infrastructure, including but not limited to utilities, fuel systems, and previously installed foundations. The Contractor shall verify all subsurface conditions prior to installation.

d. Concrete Toppers:

Concrete toppers shall be provided and installed over each of the four (4) new footings to:

- Fully encase and conceal canopy mounting plates
- Provide a smooth, level, and finished concrete surface

e. Painting and Finishes:

- All exposed structural steel components shall be painted white

- A red trim finish shall be applied at the base of each canopy column

4. GENERAL NOTES

- A. All work shall comply with the Florida Building Code (FBC), 2023, 8th Edition.
- B. Contractors are required to visit the project site prior to submitting a proposal in order to become familiar with existing conditions and the full extent of the work.
- C. The Contractor shall verify all field dimensions and site conditions. Any discrepancies shall be reported to the Engineer prior to the start of construction. Failure to do so shall result in the Contractor assuming full responsibility for errors or omissions. Drawings shall not be scaled.
- D. The Contractor shall obtain and secure all required permits, approvals, and inspections necessary to complete the work.
- E. The Contractor shall coordinate all activities with other trades, as applicable, to avoid conflicts and ensure efficient project completion.
- F. Interior finish materials, where applicable, shall meet a minimum Class "C" flame spread rating.
- G. Shop drawings, product approvals, product data (four (4) sets), and finish samples shall be submitted to the Engineer for review and approval prior to installation.
- H. All work shall be installed plumb, level, square, and properly aligned. Materials shall be securely anchored and accurately fitted to adjacent surfaces in accordance with approved drawings and shop submittals.
- I. The Contractor shall be responsible for the removal and proper disposal of all construction debris generated as part of this project.
- J. All materials shall be installed in accordance with manufacturer specifications, applicable codes, and accepted industry standards.
- K. Structural wood and timber framing, where applicable, shall comply with the *Timber Construction Manual* published by the American Institute of Timber Construction.
- L. All wood in contact with concrete, masonry, or steel shall be pressure-treated. An approved moisture barrier shall be installed between wood and cementitious materials as required by code.
- M. The Contractor shall provide all necessary shoring and bracing to maintain structural stability throughout construction.
- N. The Contractor shall be responsible for all permit fees, inspections, and required testing. Upon completion, all applicable warranties, including but not limited to roofing (minimum 10-year warranty), fixtures, and equipment, shall be submitted to the Owner.

The rest of this page is intentionally left blank.

Whenever the following terms appear in the solicitation, the intent and meaning shall be interpreted as follows:

- A. **Addendum/Addenda:** Any additions, deletions, or revisions to the Solicitation.
- B. **Amendment:** Document signed by the Consultant and the CITY that authorizes an adjustment in the Work, Contract Price, or Contract Time.
- C. **Best and Final Proposal(s):** The final quote submitted after negotiations are completed containing the PROPOSER's most favorable terms for price, Services, and products to be delivered.
- D. **"Bid" or "Invitation to Bid" (ITB):** terms used interchangeably in an Invitation to Bid while retaining the same meaning.
- E. **CBE Firm or SBE Firm:** A County Business Enterprise ("CBE") or Small Business Enterprise ("SBE") as defined by Section 1-81.1(c) of the Code of Ordinances of Broward County, Florida, that has a Broward County Business Tax Receipt, is located and doing business in Broward County, and is certified as such by the Broward County Office of Economic Development and Small Business Development.
- F. **Change Order:** means a written order issued by Owner and, except for unilateral written orders approved by Owner, accepted by Contractor, authorizing additions, deletions, or revisions in the Work, or an adjustment in the contract price, or contract times, issued on or after the Effective Date of the Contract.
- G. **City or Owner:** City of Lauderdale Lakes, Florida, the public body, agency or instrumentality for which a Contract is to be performed. In all respects hereunder, City's performance is pursuant to City's position as the owner of a construction project. In the event City exercises its regulatory authority as a governmental body, the exercise of such regulatory authority and the enforcement of any rules, regulations, laws and ordinances shall be deemed to have occurred pursuant to City's authority as a governmental body and shall not be attributable in any manner to City as a party to the Contract.
- H. **City Commission:** The governing and legislative body of the CITY.
- I. **City Manager:** The chief administrative officer of the CITY as defined by City Charter and/or Code of Ordinances.
- J. **Contract or Agreement:** The written agreement for performance of the Scope of Work entered into between the CITY and the successful PROPOSER.
- K. **Contract Administrator:** The Purchasing Agent, or some other employee expressly designated as Contract Administrator in writing by the City Manager, who is the representative of the CITY concerning the Contract Documents.
- L. **Contract Documents:** The solicitation, all attachments and exhibits, Qualification Forms (including the Quote, information required of PROPOSER, and all required certificates and affidavits), Contract, Performance Bond, Payment Bond, General Terms and Conditions (if any), Special Conditions (if any), Technical Specifications (if any), Drawings, and all addenda and Change Orders.
- M. **"Contract Drawings" or "Drawings":** means the graphic and pictorial portions of the Contract Documents showing the design, location and dimensions of the Work, generally including plans, elevations, sections, details, schedules and diagrams.
- N. **"Contract Price":** means the total amount payable by Owner to Contractor for performance of the Work under the Contract Documents.
- O. **Department of Financial Services:** The Department of Financial Services-Department of Financial Services of the City of Lauderdale Lakes.

- P. **Drawings and/or Plans:** The official drawings, plans, maps, profiles, diagrams, and other graphic representations which show the character, location, nature, extent, and scope of Work and which have been prepared by the Consultant and are referred to in Contract Documents.
- Q. **Due Date and Time:** Due date and time listed in the Solicitation Timetable stated in this Solicitation.
- R. **Effective Date of the Agreement:** Date indicated in the Agreement on which it was executed. If no such date is indicated, it means the date on which the Agreement is signed and delivered by the last of the parties to sign and deliver.
- S. **Evaluation/Selection Committee:** City staff and/ or outside consultants assigned to evaluate the submitted proposals.
- T. **Local Business:** A firm that is domiciled and doing business within the City of Lauderdale Lakes CITY limits and complies with all City of Lauderdale Lakes licensing requirements and is current on all CITY taxes.
- U. **Notice to Proceed.** A written notice to Contractor authorizing the commencement of work.
- V. **“Proposal”, “Response” “Offer” or “Bid”:** Any offer(s) submitted in response to this solicitation.
- W. **Proposer:** Any individual, firm, or corporation submitting a proposal for this project, acting directly or through a duly authorized representative. For the purpose of this Contract, PROPOSER shall mean the same thing as the BIDDER.
- X. **“Provider”, “Bidder”, “Contractor”, or “Successful Proposer” “Firm” “Program Administrator” “Vendor: or “Consultant”:** The PROPOSER receiving an award as a result of this solicitation. Said terms may be used interchangeably while retaining the same meaning.
- Y. **Purchasing Office:** The Administration Division of the Department of Financial Services of the City of Lauderdale Lakes.
- Z. **“Request for Proposal,” or “RFP”:** A Request for Proposal including all Exhibits and Attachments as approved by the CITY, and addenda or change orders issued by the Purchasing Division.
- AA. **Subcontractor / Subconsultant:** Any person, firm, entity, or organization, other than the employees of the Successful PROPOSER, who contract with the Successful PROPOSER to furnish labor, or labor and materials, in connection with the Work or Services to the CITY, whether directly or indirectly, on behalf of the Successful PROPOSER.
- BB. **Substitutions or As Equal:** Materials, products, equipment or system, that are alternate from those originally specified in the Contract Documents.
- CC. **Surety:** The surety company or individual bound by the performance bond and payment bond with and for the Successful PROPOSER who is primarily liable, and which surety company or individual is responsible for the Successful PROPOSER's satisfactory performance of the Work under the Contract and for the payment of all debts pertaining thereto in accordance with Section §255.05, Florida Statutes.
- DD. **Taxes:** All taxes related to the performance of the Work or any portion thereof, including but not limited to all sales, consumer, use, occupational, excise, social security, unemployment compensation and similar taxes.
- EE. **Vendor:** All merchants, Material men, Suppliers of labor, Material and equipment, providers and all other professionals who are currently under service contracts with the CITY and are delivering Services to the CITY.
- FF. **Work, Services, Program, Project, Activity, or Engagement:** All matters that will be required to be done by the successful PROPOSER in accordance with the Scope of Work, and the Terms and Conditions of this solicitation.

Please reference the [ATTACHMENTS](#) for the Definitions and Standard General Conditions of the Construction Contract AND the items below:

5. GENERAL CONDITIONS

It is the sole responsibility of the RESPONDENT to become thoroughly familiar with the Solicitation requirements and all terms and conditions affecting the process of this Solicitation. Plead of ignorance by the RESPONDENT of conditions that exist, or that may exist, will not be accepted as a basis for varying the requirements of this Solicitation.

5.1. ADDITIONAL TERMS AND CONDITIONS:

No additional terms and conditions included with the response shall be evaluated or considered, have no force or effect, and are inapplicable to this response unless agreed to in writing by the City. It is understood and agreed that the conditions in these Solicitation Documents are the only conditions applicable to this solicitation and the Respondent's authorized signature on the Solicitation Form attests to this.

5.2. ANNUAL APPROPRIATION:

Any Contract issued is conditional upon the approval of the annual budget appropriations to implement the Contract.

5.3. ASSIGNMENT:

Any Purchase Order or Contract issued pursuant to this solicitation and the monies which may become due hereunder are not assignable, in whole or part without prior consent and approval by the City Manager or designated representative.

5.4. AWARD OF CONTRACT

The CITY reserves the right to accept any Response or combination of Response alternates which, in the CITY'S judgement will best serve the CITY'S interest, reject any and all Responses, waive any and all informalities and/or irregularities, and disregard all nonconforming, nonresponsive, unbalanced or conditional Responses. Also, the CITY reserves the right to reject the Response of any RESPONDENT, if the CITY believes that it would not be in the best interest of the CITY to make an award to that RESPONDENT, whether because the Response is non-conforming, non-responsive, unqualified, of doubtful financial ability or fails to meet any other pertinent standard or criteria established by the CITY.

The Successful Contractor(s) shall not begin work until a Contract has been awarded by the City Commission (if required) and a notice to proceed has been issued. Contractor(s) agree and understand that the issuance of a Purchase Order and/or Task Order shall be issued and provided to the Contractor(s) following Commission award.

5.5. RESPONSE SUBMITTAL

Responses are to be submitted electronically via the City's eProcurement portal at <https://procurement.opengov.com/portal/lauderdalelakes>.

Responses by partnerships must be executed in the partnership name, signed by a partner, and accompanied by evidence of authority to sign. The name of the person executing the Solicitation Document shall be typed or printed below the signature.

Responses by corporations must be executed in the corporate name by the president, vice-president or other corporate officer, attested by the secretary of the corporation and accompanied by evidence of authority to sign. The name of the person executing the Solicitation Document and state of incorporation shall be typed or printed below the signature. Respondents are required to acknowledge receipt of all Addenda (if applicable) with their submittals.

5.6. CLEAN AIR ACT AND FEDERAL POLLUTION CONTROL ACT

CONTRACTOR shall comply with all applicable standards, orders, or regulations issued pursuant to the Clean Air Act (42 U.S.C. §§ 7401- 7671q) and the Federal Water Pollution Control Act as amended (33 U.S.C. §§ 1251-1387).

5.7. COORDINATION

The Contractor shall notify all utilities, transportation department, etc., in writing, with a copy to the Public Works Director before construction is started and shall coordinate his Work with them. The Contractor shall cooperate with the owners of any underground or overhead utility lines in their removal, construction and rearrangement operations in order that services rendered by these parties will not be unnecessarily interrupted.

The Contractor shall arrange his Work and dispose of his materials so as to not interfere with the operation of other Contractors engaged upon adjacent work and to join his Work to that of others in a proper manner and to perform his Work in the proper sequence in relation to that of other Contractors all as may be directed by the Public Works Director.

Each Contractor shall be responsible for any damage done by him or his agents to the work performed by another Contractor.

The Contractor shall contact the Broward County Transportation Department and the Florida Department of Transportation, as applicable, to verify and obtain location of any and all traffic conduits, loops, and street light underground services.

5.8. CONFLICT OF INTEREST

All RESPONDENTS must disclose with their Response the name of each of its employees, agents, or relatives who are employees of the CITY. Further, all RESPONDENTS must disclose the name of any CITY employee known to it, who owns, directly or indirectly, any interest in the RESPONDENT'S firm or any of its affiliated companies.

5.9. CONTRACT EXTENSION

The City reserves the right to automatically extend any Contract for up to ninety (90) calendar days beyond the stated Contract term, under the same terms and conditions of said Contract. The City shall notify the Successful Respondent in writing of such extensions. Additional extensions over the first ninety (90) day extension may occur, if the City and the Successful Respondent are in mutual agreement of such extensions.

5.10. COMPLIANCE WITH FEDERAL LAWS, REGULATIONS AND EXECUTIVE ORDERS

Respondents are required to comply with all provisions of federal, state, county and local laws, ordinances rules and regulations that are applicable to the services being offered in the Solicitation. Lack of knowledge of the Respondent shall in no way be a cause for relief from responsibility.

5.11. DAVIS-BACON ACT

CONTRACTOR shall comply with the computation of wages for mechanics and laborers in accordance with 40 U.S.C. §§ 3702 and 3704 and supplements of 29 C.F.R Part 5.

5.12. DEBARRED OR SUSPENDED BIDDERS OR PROPOSERS

The respondent certifies, by submission of a response to this solicitation, that neither it nor its principals and subcontractors are presently debarred or suspended by any Federal department or agency.

5.13. DELETION/OVERSIGHT/MISSTATEMENT

Any deletion, oversight or misstatement of the Specifications shall not release the Respondent from the responsibility of supplying complete and fully operational units, together with all appurtenances necessary for unrestricted operation as determined by the City in its sole discretion.

5.14. DUST PREVENTION

The Contractor shall, by means of a water spray, or temporary asphalt pavement, take all necessary precautions to prevent or abate a dust nuisance arising from dry weather or Work in an incomplete stage. All costs of this Work shall be included in cost of other parts of the Work.

Should the Contractor fail to abate a dust nuisance by the above methods, and then he will be required to immediately construct temporary patches per City standards.

5.15. ELECTRONIC SOLICITATION OPENING

Please be advised that effective immediately, and until further notice, all Invitation to Bids, Request For Proposals, Request For Qualifications, and other solicitations led by the City of Lauderdale Lakes will be opened electronically via <https://procurement.opengov.com/portal/lauderdalelakes> at the date and time indicated on the solicitation. All openings will be held on the <https://procurement.opengov.com/portal/lauderdalelakes> platform. Once the solicitation is opened virtually, the bid tabulations may be viewed immediately on a computer, laptop, cell phone, or any other device with Wi-Fi access. The virtual opening may also be viewed in real time via the Zoom link in the timeline of the solicitation.

5.16. EMPLOYEES

Employees of the Contractor shall at all times be under its sole direction and not be an employee or agent of the City. The Contractor shall supply competent employees. The City may require the Contractor to remove an employee or subcontractor it deems careless, incompetent, insubordinate or otherwise objectionable without any cost to the City or without any increase in Contract Price. Contractor shall be responsible to the City for the acts and omissions of all employees working under its directions whether or not the actions taken go beyond the normal scope of employment.

5.17. EQUAL EMPLOYMENT OPPORTUNITY

CONTRACTOR will not discriminate against any employee or applicant for employment because of race, color, religion, sex, or national origin. To include any revisions and/or amendments to the 41 C.F.R, 60-1.4(b), in accordance with Executive Order 11246, Equal Employment Opportunity (30 Fed. Reg. 12319, 12935, 3 C.F.R. Part, 1964-1965 Comp., p. 339), as amended by Executive Order 11375, Amending Executive Order 11246 Relating to Equal employment

Opportunity, and implementing regulations at 41 C.F.R. Part 60 (Office of Federal Contract Compliance Programs, Equal Employment Opportunity, Department of Labor).

5.18. EXPENSES

Neither the CITY nor its representatives shall be liable for any expenses incurred in connection with preparation of a response to this Solicitation. All expenses in the preparation of this Solicitation are the sole responsibility of the Respondent. All Submittals should be prepared to provide a straightforward and concise description of the Respondent's qualifications and ability to meet the requirements of the Solicitation.

5.19. FLORIDA TRENCH SAFETY ACT COMPLIANCE

In the event this contract requires trench excavation, the requirement of Fla. Stat. 553.60, et seq., shall be adhered to by all RESPONDENTS. Every RESPONDENT shall provide a certification on the form provided and other required documentation.

5.20. FACILITIES

The City reserves the right to make a pre-award inspection of the Respondent's facilities and equipment prior to award of agreement. City reserves the right to consider history of citations and/or violations of environmental regulations in determining a Respondent's responsibility, and further reserves the right to declare a Respondent not responsible if history of violations warrant such a determination.

5.21. INDEMNIFICATION

Respondent agrees to protect, defend, indemnify, and hold harmless the City, its employees, representatives, and elected officials from any and all claims and liabilities including all attorney's fees and court costs, including appeals, for which the City, its employees, representatives, and elected officials can or may be held liable as a result of injury (including death) to persons or damage to property occurring by reason of any negligence, recklessness, or intentional wrongful misconduct of the Respondent, its employees, or agents, arising out of or connected with this Contract. The Respondent shall not be required to indemnify the City or its agents, employees, representatives, or elected officials when an occurrence results solely from the wrongful acts or omissions of the City, or its agents, employees or representatives.

The parties agree that one per cent (1%) of the total compensation paid to the Respondent for performance of this Contract shall represent the specific consideration for the Respondent's indemnification of the Owner.

It is the specific intent of the parties hereto that the foregoing indemnification complies with F.S. 725.06 (Chapter 725). It is further the specific intent and agreement of the parties that all of the Contract Documents on this Project are hereby amended to include the foregoing indemnification and the "Specific Consideration" therefore.

5.22. INSURANCE

If the Contractor is required to go on to City property to perform work or services as a result of Solicitation award, the Contractor shall assume full responsibility and expense to obtain all necessary insurance as required by City or specified in Special Conditions.

The Contractor shall provide to the Purchasing Division original certificates of coverage and receive notification of approval of those certificates by the City's Risk Manager prior to engaging in any activities under this contract. The Contractor's insurance is subject to the approval of the City's Risk Manager. The certificates must list the City as an ADDITIONAL INSURED for General Liability Insurance, and shall have no less than thirty (30) days written notice of cancellation or material change. Further modification of the insurance requirements may be made at the sole discretion of

the City's Risk Manager if circumstances change or adequate protection of the City is not presented. Bidder, by submitting the bid, agrees to abide by such modifications.

Comprehensive or Commercial General Liability – Minimum Limits of total coverage shall be \$2,000,000 per occurrence combined single limit for Bodily Injury Liability and Property Damage Liability, the basic policy to be in said form with any excess coverage (and the carrier) to meet \$2,000,000 minimum to be acceptable to the CITY.

Commercial/Business Auto Policy - Minimum limit of \$1,000,000 per occurrence combined single limit for Bodily Injury Liability and Property Damage Liability for owned vehicles, hired and non-owned vehicles; employee non-ownership

Workers Compensation and Employer's Liability - Coverage to apply for all employees for Statutory Limits in compliance with the applicable State and Federal laws. CONTRACTOR shall require each SUB- CONTRACTOR similarly to maintain workers compensation during the term of the Contract and up to the date of final acceptance. CONTRACTOR shall defend, indemnify and save the CITY harmless from any damage resulting to them for failure of either CONTRACTOR or any SUB- CONTRACTOR to take out or maintain such insurance.

5.23. INTERPRETATIONS

All Respondents shall carefully examine the Solicitation Documents. Any ambiguities or inconsistencies shall be brought to the attention of the City in writing prior to the opening of Submittals; failure to do so on the part of the Respondent will constitute an acceptance by the Respondent of any subsequent decision by the City. Any questions concerning the intent, meaning and interpretations of the Solicitation Documents shall be requested in writing, and received by the City at least fourteen (14) days prior to the Solicitation Opening. Inquiries shall be addressed to the Purchasing Agent. No person is authorized to give oral interpretations of, or make oral changes to the Solicitation. Therefore, oral statements given before the solicitation opening will not be binding. Any interpretation of, or changes to the solicitation will be made in the form of a written Addendum to the solicitation and will be furnished to all Respondents. Receipt of all addenda shall be acknowledged by the Respondents with their electronic submittal.

5.24. LOCAL PREFERENCE

Any qualified local business shall receive bidding preferences pursuant to Section 82-356 (l) of the CITY's Code of Ordinances, which states:

"If a qualified local business submits a response to either an inquiry made pursuant to informal competitive conditions or a formal solicitation as required in Section 82-356 of the code, and the original Response of the qualified local business is within twenty percent (20%) of the low Response, then the CITY shall give the qualified local business the opportunity to meet the price of the low Response. The order of preference by which the qualified local business shall be given the opportunity to match the low Response shall be from the lowest to the highest Response, as long as the initial Response was within twenty percent (20%) of the low Response."

5.25. MINIMUM QUALIFICATIONS

To be eligible for award of a contract in response to this solicitation, the Respondent must demonstrate that they have successfully completed services, as specified in the Technical Specifications / Scope of Services section of this solicitation, are normally and routinely engaged in performing such services for a minimum of three (3) years, and are properly and legally licensed to perform such work. In addition, the Respondent must have no conflict of interest with regard to any other work performed by the Respondent for the City of Lauderdale Lakes.

5.26. MODIFICATION OF SUBMITTAL

Respondents may go to the City's eProcurement portal at <https://procurement.opengov.com/portal/lauderdalelakes> and unsubmit their response in order to modify or withdraw it, prior to the Solicitation Closing Date & Time. No modifications of

an Response shall be accepted after the Solicitation Closing Date & Time. Please remember to submit the response again if modifying it.

5.27. NO EXCLUSIVE CONTRACT

Respondent agrees and understands that the contract shall not be construed as an exclusive arrangement and further agrees that the City may, at any time, secure similar or identical services from another vendor at the City's sole option.

5.28. NON-COLLUSION

Every RESPONDENT shall provide an affidavit on the form provided indicating that it has not divulged, discussed or compared its Response with other RESPONDENTS and has not colluded with any other RESPONDENT or parties to a Response whatsoever. (Note: Premiums, rebates or gratuities are not permitted with, prior to, or after any delivery of material.) Any such violation will result in the cancellation and/or return of materials (as applicable) as being non-conforming and removal from the CITY'S Vendor list(s).

5.29. PAYMENT/INVOICES

Payment terms will be considered to be net 30 days after the date of satisfactory delivery at the place of acceptance and receipt of correct invoice at the office specified, whichever occurs last, in accordance with the Florida Local Government Prompt Payment Act. Respondent may offer cash discounts for prompt payment but they will not be considered in determination of award.

5.30. PAYMENT METHOD

The City requires all vendors to receive payment by electronic funds transfer (EFT). This allows you as a vendor of the City of Lauderdale Lakes to receive your payment fast and safely. Accordingly, firms must presently have the ability to accept electronic funds transfer payments or take whatever steps necessary to implement acceptance before the commencement of a contract. EFT application is provided in the Vendor Registration Application.

The City is further transitioning to vendor payments using the Purchasing Card (P-Card) Program utilizing the MASTERCARD and VISA networks. Purchases from this contract will be eventually made utilizing the City's Purchasing Card. Contractors will receive payment from the purchasing card in the same manner as other credit card purchases. Once fully implemented, the City will provide a deadline or window in which Contractors must have the ability to accept credit card payments. Note that any costs associated with the participation in this payment program shall be borne by the Contractor. The City reserves the right to revise this program as necessary.

5.31. PAYMENT SCHEDULE

Payments will be based on a schedule of payment to be developed upon award of this Contract. In addition, the City reserves the right to inspect records supporting the Contractor's billings.

5.32. PERMITS, TAXES, LICENSES

The successful Contractor shall, at their own expense, obtain all necessary permits, pay all licenses, fees and taxes, required to comply with all local ordinances, state and federal laws, rules and regulations applicable to business to be carried out under this contract.

5.33. PROCUREMENT OF RECOVERED MATERIALS

CONTRACTOR must comply with Section 6002 of the Solid Waste Disposal Act, Pub. L. No. 89-272 (1965) (codified as amended by the Resource Conservation and Recovery Act at 42 U.S.C. § 6962). During the performance of this contract, the Contractor shall make maximum use of products containing recovered materials that are EPA - designated items unless the product cannot be acquired.

5.34. PLACING BARRICADES AND WARNING LIGHTS

The Contractor shall furnish and place, at his own expense, all barricades, warning lights, automatic blinker lights and such devices necessary to properly protect the work and vehicular and pedestrian traffic. Should the Contractor fail to erect or maintain such barricades, warning lights, etc., the Public Works Director may, after 24 hours' notice to the Contractor, proceed to have such barricades and warning lights placed and maintained by City or other forces and all costs incurred thereof charged to the Contractor and may be retained by the City from any monies due, or to become due, to the Contractor.

5.35. PROPOSALS TO REMAIN OPEN

All proposals shall remain open for the number of days after the day of the proposal opening stated in the special provisions, or if no such number of days is stated, all proposals shall remain open for ninety (90) days after the date of proposal opening prior to award. The City may, in its sole discretion, release any proposal prior to that date.

5.36. PROTESTS

Any actual or prospective bidder, offeror, or contractor who is aggrieved in connection with the solicitation or award of a contract may protest to the Director of Financial Services or designee. The protest shall be submitted in writing within five business days after such aggrieved person knows or should have known of the facts giving rise thereto. Service of a protest by mail or courier shall not expand the time frame period allowed for delivery of a protest. Upon the filing of a formal written protest the contractor or vendor shall post a bond, payable to the City of Lauderdale Lakes, in an amount equal to five percent of the total bid or estimated contract amount, or \$5,000.00, whichever is less. The bond shall be conditioned upon the payment of all costs which may be adjudged against the protesting contractor or vendor in the event the protest is resolved adversely to the protester. **Please refer to the City's Procurement Code, Article XIII, Lauderdale Lakes Procurement Code, Sec 82-364.**

5.37. PUBLIC ENTITY CRIMES

Pursuant to F.S. 287.133. as amended: a person or affiliate who has been placed on the convicted vendor list following a conviction for a public entity crime may not submit a proposal on a Contract to provide any goods or services to a public entity, may not submit a proposal on a Contract with a public entity for the construction or repair of a public building or public work, may not submit proposals on leases of real property to a public entity, may not be awarded or perform work as a Contractor, supplier, Subcontractor, or consultant under a Contract with any public entity, and may not transact business with any public entity in excess of the threshold amount provided in s. 287.017 for CATEGORY TWO for a period of 36 months from the date of being placed on the convicted vendor list.

5.38. RECORDS/AUDIT

The Contractor shall maintain during the term of the contract all books of account, reports and records in accordance with generally accepted accounting practices and standards for records directly related to this contract. The Contractor agrees to make available to the City's designee, all books of account, reports and records relating to this contract should be

retained for the duration of the contract and for three years after the final payment under this Agreement, or until all pending audits, investigations or litigation matters relating to the contract are closed, whichever is later.

5.39. RESPONSIBILITY

In order to be considered as a responsible Contractor, Contractor shall be fully capable to meet all of the requirements of the solicitation and subsequent contract, must possess the full capability, including financial and technical, to perform as contractually required, and must be able to fully document the ability to provide good faith performance.

5.40. RESPONSIVENESS

In order to be considered responsive to the solicitation, the Contractor's response shall fully conform in all material respects to the solicitation and all of its requirements, including all form and substance.

5.41. SCRUTINIZED COMPANIES

Subject to *Odebrecht Construction, Inc., v. Prasad*, 876 F.Supp.2d 1305 (S.D. Fla. 2012), affirmed, *Odebrecht Construction, Inc., v. Secretary, Florida Department of Transportation*, 715 F.3d 1268 (11th Cir. 2013), with regard to the "Cuba Amendment," the Contractor certifies that it is not on the Scrutinized Companies with Activities in Sudan List or the Scrutinized Companies with Activities in the Iran Petroleum Energy Sector List or the Scrutinized Companies that Boycott Israel List created pursuant to Section 215.4725, Florida Statutes (2018), that it is not engaged in a boycott of Israel, and that it does not have business operations in Cuba or Syria, as provided in section 287.135, Florida Statutes (2018), as may be amended or revised. The City may terminate this Agreement at the City's option if the Contractor is found to have submitted a false certification as provided under subsection (5) of section 287.135, Florida Statutes (2018), as may be amended or revised, or been placed on the Scrutinized Companies with Activities in Sudan List or the Scrutinized Companies with activities in the Iran Petroleum Energy Sector List or the Scrutinized Companies that Boycott Israel List created pursuant to Section 215.4725, Florida Statutes (2018), or is engaged in a boycott of Israel or has been engaged in business operations in Cuba or Syria, as defined in Section 287.135, Florida Statutes (2018), as may be amended or revised.

5.42. SUB-CONTRACTORS, SUPPLIERS AND OTHERS

If the Solicitation requires the identity of certain SUB CONTRACTORS, Suppliers and other persons and organizations, including those who are to furnish the principal items of material and equipment, to be submitted, the RESPONDENT shall provide such identification. If requested by the CITY, RESPONDENT shall provide an experience statement with pertinent information regarding similar projects and other evidence of qualification for each SUB-CONTRACTOR, Supplier, person or organization. If the CITY after due investigation has reasonable objection to any proposed SUB-CONTRACTOR, Supplier, other person or organization, either may, before the Notice of Tentative Award is given, request the apparent SUCCESSFUL RESPONDENT to submit an acceptable substitute without an increase in Bid price. If the apparent SUCCESSFUL RESPONDENT declines to make any such substitution, the CITY may award the contract to the next lowest RESPONDENT that proposes to use acceptable SUB CONTRACTORS, Suppliers and other persons and organizations. The declining to make requested substitutions will not constitute grounds for sacrificing the Bid Security of any RESPONDENT. Any SUB CONTRACTOR, Supplier, other person or organization listed and to whom the CITY does not make written objection prior to the giving of the Notice of Tentative Award will be deemed acceptable to the CITY subject to revocation of such acceptance after the Effective Date of the Contract as provided in Paragraph 6.5.2 of the General Conditions. SUB- CONTRACTORS shall not be changed without the approval of the CITY. No acceptance by the CITY of any such SUB-CONTRACTOR, Supplier or other person or organization shall constitute a waiver of any right of the CITY to reject defective WORK or materials not conforming to these specifications.

In contracts where the Contract Price is on the basis of Cost-of-the-WORK Plus a Fee, the apparent SUCCESSFUL RESPONDENT, prior to the Notice of Tentative Award, shall identify in writing to the CITY those portions of the WORK

that such RESPONDENT proposes to subcontract and after the Notice of Tentative Award the Successful RESPONDENT may only subcontract other portions of the WORK with the CITY'S written consent.

No RESPONDENT shall be required to employ any SUB-CONTRACTOR, other person or organization against which RESPONDENT has reasonable objection.

No more than seventy percent (70%) of the dollar value of the total contract WORK may be accomplished by SUB-CONTRACTORS. Balance of the WORK must be accomplished by the SUCCESSFUL RESPONDENT'S own forces. Each RESPONDENT must furnish with its Response, a list of the items it proposes to subcontract and the estimated cost of these items.

5.43. SUBSTITUTE OR "OR-EQUAL" ITEMS

The Contract, if awarded, will be on the basis of material and equipment described in the Drawings or specified in the Specifications without consideration of possible substitute or "or-equal" items. Whenever it is indicated in the Drawings or specified in the Specifications that a substitute or "or-equal" item of material or equipment may be furnished or used by SUCCESSFUL RESPONDENT if acceptable to CITY, application for such acceptance must be made fifteen (15) Calendar days prior to the Solicitation opening date, or such application will not be considered by CITY. The procedure for submittal of any such application, including those applications made after award of the Construction Contract by SUCCESSFUL RESPONDENT for consideration by CITY, is set forth in Section 6.4 of the General Conditions which may be supplemented in the General Requirements.

5.44. SUBSTITUTION OF KEY PERSONNEL

It is the intention of the City that the Contractor's personnel proposed for the contract will be available for the contract term. In the event the Consultant wishes to substitute personnel, he shall propose personnel of equal or higher qualifications and all replacement personnel are subject to City approval. In the event substitute personnel are not satisfactory to the City and the matter cannot be resolved to the satisfaction of the City, the City reserves the right to cancel the Contract for cause.

5.45. TERMINATION FOR CAUSE

If, through any cause, the Contractor shall fail to fulfill in a timely and proper manner its obligations under this Agreement, or if the Contractor shall violate any of the provisions of this Agreement, the City may upon written notice to the Contractor terminate the right of the Contractor to proceed under this Agreement, or with such part or parts of the Agreement as to which there has been default, and may hold the Contractor liable for any damages caused to the City by reason of such default and termination. In the event of such termination, any completed services performed by the Contractor under this Agreement shall, at the option of the City, become the City's property and the Contractor shall be entitled to receive equitable compensation for any work completed to the satisfaction of the City. The Contractor, however, shall not be relieved of liability to the City for damages sustained by the City by reason of any breach of the Agreement by the Contractor, and the City may withhold any payments to the Contractor for the purpose of setoff until such time as the amount of damages due to the City from the Contractor can be determined.

5.46. TERMINATION FOR CONVENIENCE

The City reserves the right, in its best interest as determined by the City, to cancel contract by giving written notice to the Contractor thirty (30) days prior to the effective date of such cancellation.

5.47. UNCONTROLLABLE CIRCUMSTANCES ("FORCE MAJEURE")

The City and Contractor will be excused from the performance of their respective obligations under this agreement when and to the extent that their performance is delayed or prevented by any circumstances beyond their control including, fire, flood, explosion, strikes or other labor disputes, act of God or public emergency, war, riot, civil commotion, malicious damage, act or omission of any governmental authority, delay or failure or shortage of any type of transportation, equipment, or service from a public utility needed for their performance. Prompt notice in writing must describe the particulars of the Force Majeure, provided that.

5.48. USE OF FLORIDA LUMBER TIMBER AND OTHER FOREST PRODUCT

In accordance with Florida Statute 255.20 (3), the City specifies that lumber, timber, and other forest products used for this project shall be produced and manufactured in the state of Florida if such products are available and their price, fitness, and quality are equal. This requirement does not apply to plywood specified for monolithic concrete forms, if the structural or service requirements for timber for a particular job cannot be supplied by native species, or if the construction is financed in whole or in part from federal funds with the requirement that there be no restrictions as to species or place of manufacture.

The Respondent affirms by submitting a response to this solicitation that they will comply with section 255.20 (3) Florida Statutes.

5.49. VENUE

All contracts shall be governed by the laws of the State of Florida and venue shall be in Broward County, Florida.

5.50. WITHDRAWAL OF SUBMITAL

A Response shall be irrevocable unless the Response is withdrawn as provided herein. A Response may be withdrawn by unsubmitting your response in the eProcurement portal prior to the Solicitation Closing Date & Time.

5.51. PUBLIC RECORDS/TRADE SECRETS/COPYRIGHT

The Respondent's response to the Solicitation is a public record pursuant to Florida law, which is subject to disclosure by the City under the State of Florida Public Records Law, Florida Statutes Chapter 119.07 ("Public Records Law"). The City shall permit public access to all documents, papers, letters or other material submitted in connection with this Solicitation and the Contract to be executed for this Solicitation, subject to the provisions of Chapter 119.07 of the Florida Statutes.

Any language contained in the Respondent's response to the Solicitation purporting to require confidentiality of any portion of the Respondent's response to the Solicitation, except to the extent that certain information is in the City's opinion a Trade Secret pursuant to Florida law, shall be void. If a Respondent submits any documents or other information to the City which the Respondent claims is Trade Secret information and exempt from Florida Statutes Chapter 119.07 ("Public Records Laws"), the Respondent shall clearly designate that it is a Trade Secret and that it is asserting that the document or information is exempt. The Respondent must specifically identify the exemption being claimed under Florida Statutes 119.07. The City shall be the final arbiter of whether any information contained in the Respondent's response to the Solicitation constitutes a Trade Secret. The City's determination of whether an exemption applies shall be final, and the Respondent agrees to defend, indemnify, and hold harmless the City and the City's officers, employees, and agent, against any loss or damages incurred by any person or entity as a result of the City's treatment of records as public records. Responses purporting to be subject to copyright protection in full or in part will be rejected.

EXCEPT FOR CLEARLY MARKED PORTIONS THAT ARE BONA FIDE TRADE SECRETS PURSUANT TO FLORIDA LAW, DO NOT MARK YOUR RESPONSE TO THE SOLICITATION AS PROPRIETARY OR CONFIDENTIAL. DO NOT MARK YOUR RESPONSE TO THE SOLICITATION OR ANY PART THEREOF AS COPYRIGHTED.

IF THE CONTRACTOR HAS QUESTIONS REGARDING THE APPLICATION OF CHAPTER 119, FLORIDA STATUTES, TO THE CONTRACTOR'S DUTY TO PROVIDE PUBLIC RECORDS RELATING TO THIS CONTRACT, CONTACT THE CUSTODIAN OF PUBLIC RECORDS AT:

Telephone Number: [REDACTED]

Mailing Address: City Clerk's Office
4300 NW 36th Street, Lauderdale Lakes, FL 33309

EMAIL: [REDACTED]

Contractor shall:

1. Keep and maintain public records that ordinarily and necessarily would be required by the City in order to perform the service.
2. Upon request from the City's custodian of public records, provide the City with a copy of the requested records or allow the records to be inspected or copied within a reasonable time at a cost that does not exceed the cost provided in Chapter 119, Florida Statutes (2018), as may be amended or revised, or as otherwise provided by law.
3. Ensure that public records that are exempt or confidential and exempt from public records disclosure requirements are not disclosed except as authorized by law for the duration of the contract term and following completion of this contract if the Contractor does not transfer the records to the City.
4. Upon completion of the Contract, transfer, at no cost, to the City all public records in possession of the Contractor or keep and maintain public records required by the City to perform the service. If the Contractor transfers all public records to the City upon completion of this Contract, the Contractor shall destroy any duplicate public records that are exempt or confidential and exempt from public records disclosure requirements. If the Contractor keeps and maintains public records upon completion of this Contract, the Contractor shall meet all applicable requirements for retaining public records. All records stored electronically must be provided to the City, upon request from the City's custodian of public records, in a format that is compatible with the information technology systems of the City.

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TERM OF CONTRACT

The City intends to award a one-time service contract for the Fuel Bay Overhead Canopy Replacement. The ***anticipated*** commencement of the project is **June 2026**. The contract shall commence upon final execution by the City and shall remain in effect for 100 days, at which time all work must be fully completed. No renewal terms are associated with this agreement. Any extension of time beyond the stated completion date shall require prior written approval from the City and will be granted only under circumstances deemed justified and in the best interest of the City.

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INQUIRIES/AVAILABILITY

Inquiries concerning Proposal Submittals should be submitted via the eProcurement portal at <https://procurement.opengov.com/portal/lauderdalelakes>.

Solicitation documents shall be downloaded from the eProcurement portal at: <https://procurement.opengov.com/portal/lauderdalelakes>.

CONTACT WITH PERSONNEL OF THE CITY OF LAUDERDALE LAKES OTHER THAN THE DESIGNATED REPRESENTATIVE REGARDING THIS REQUEST FOR PROPOSALS MAY BE GROUNDS FOR ELIMINATION FROM THE SELECTION PROCESS.

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SUBMITTAL INFORMATION: How, When & Where

Responses MUST be submitted electronically via the City's eProcurement portal at <https://procurement.opengov.com/portal/lauderdalelakes>. Vendor guides on how to register and submit responses can be found here: <https://opengov.my.site.com/support/s/article/ca6d1285-1e48-4a21-bb0d-715edb7794ed>. You must be a planholder in order to submit a response. Responses received electronically will remain sealed or unopened until the request for proposal is declared closed.

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WAIVERS

The CITY in its sole discretion, reserves the right to reject any and all proposals, accept any proposal or any combination of proposals or waive any minor irregularity or technicality in proposals received and may, at its sole discretion, request a re-proposal, when in its sole judgment, it will best serve public interest.

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INSURANCE REQUIREMENTS

- A. The PROPOSER shall not commence work under this Contract until it has obtained all Insurance required under this paragraph and such insurance has been approved by the CITY.
- B. All insurance policies shall be issued by companies authorized to do business under the laws of the State of Florida. The PROPOSER shall furnish Certificates of Insurance to the CITY's representative prior to the commencement of operations. The Certificates shall clearly indicate that the PROPOSER has obtained insurance of the type, amount, and classification as required for strict compliance with this paragraph and that no material change or cancellation of the insurance shall be effective without thirty (30) days prior written notice to the CITY's representative. Compliance with the foregoing requirements shall not relieve the PROPOSER of its liability and obligations under this Contract.
- C. The PROPOSER shall maintain during the term of this Contract, standard Professional Liability Insurance in the minimum of \$2,000,000 per occurrence for Errors and Omissions.
- D. The PROPOSER shall maintain, during the life of this Contract, Comprehensive General Liability Insurance in the amount of \$2,000,000 per occurrence to protect the PROPOSER from claims for damages for bodily and personal injury, including wrongful death, as well as from claims of property damages which may arise from any operations under this Contract, whether such operations be by the PROPOSER or by anyone directly employed by or contracting with the PROPOSER.
- E. The PROPOSER shall maintain, during the life of this Contract, Comprehensive Automobile Liability insurance in the minimum amount of \$2,000,000 combined single limit for bodily injury and property damage liability to protect the PROPOSER from claims for damages for bodily and personal injury, including death, as well as from claims for property damage, which may arise from the ownership, use or maintenance of owned and non-owned automobiles, including rented automobiles whether such operations be by the PROPOSER or by anyone directly or indirectly employed by the PROPOSER.
- F. The PROPOSER shall maintain, during the life of this Contract, adequate Workers' Compensation Insurance and Employer's Liability Insurance in at least such amounts as are required by law for all of its employees per Florida Statute 440.02.
Exceptions: Workers' Compensation Insurance will not be required if the individuals performing the work are a corporation officer, sole proprietor, or partner. In such case, the firm shall provide copies of their waivers as provided by Florida Statutes 440.055.
- G. All insurance, other than Professional Liability and Workers' Compensation, to be maintained by the PROPOSER shall specifically include the City of Lauderdale Lakes as "Additional Insured" and shall unequivocally provide thirty (30) days written notice to the CITY prior to any adverse changes, cancellation or non-renewal of coverage thereunder.
- H. Required insurance shall support PROPOSER's indemnity set forth in the Contract and shall unequivocally provide thirty (30) days written notice to the CITY prior to any adverse change, cancellation or non-renewal of coverage there under. Said liability insurance must be acceptable to and approved by the CITY as to form and types of coverage. In the event that the statutory liability of the CITY is amended during the term of this Contract to exceed the above limits, the PROPOSER shall be required, upon thirty (30) days written notice by the CITY, to provide coverage at least equal to the amended statutory limit of liability of the CITY.
- I. It shall be the responsibility of the PROPOSER to ensure that all Sub Proposers comply with the same insurance requirements referenced above.
- J. Compliance with the foregoing requirements shall not relieve the Successful PROPOSER of its liability and obligation under this section or under any other section if this section or under any other section of the Contract.

- K. Issuance of a contract is contingent upon receipt of the insurance documents within five (5) business days after a Notification of Tentative Award is issued to the PROPOSER by an authorized official of the CITY. If the insurance certificate is received within the specific time frame, but not in the manner prescribed in this Section, the Successful PROPOSER shall be verbally notified of such deficiency and shall have an additional five (5) calendar days to submit a corrected certificate to the CITY. If the Successful Proposer fails to submit the required insurance documents in the manner prescribed in this Agreement within five (5) business days after the Notification Of Tentative Award the Successful PROPOSER shall be in default of the terms and conditions and the any proposed Contract shall deemed terminated immediately. Under these circumstances, the Successful PROPOSER may be prohibited from submitting future Proposals to the CITY for a period of twelve (12) months.
- L. Successful PROPOSER shall be responsible for assuring that the insurance certificate required in conjunction with this Section remain in force for the duration of the period of performance for any contractual agreement(s) resulting from this solicitation. If insurance certificates are scheduled to expire during the term hereof, the Successful PROPOSER shall be responsible for submitting new or renewed insurance certificates to the CITY at a minimum of thirty (30) calendar days in advance of such expiration. In the event that expired certificates are not replaced with new or renewed certificates which cover the term hereof, the CITY shall suspend the Contract until such time as the new or renewed certificates are received by the CITY in a manner prescribed in this Section; provided however, that this suspension period does not exceed thirty (30) days, the CITY may at its sole discretion, terminate the Contract and seek re-Purchasing charges from the Successful PROPOSER.
- M. In the judgment of the CITY, prevailing conditions warrant the provision by Successful PROPOSER of additional liability insurance coverage or coverage which is different in kind, the CITY reserves the right to require the provision by Successful PROPOSER of an amount of coverage different from the amounts or kind previously required and shall afford written notice of such change in requirements thirty (30) days prior to the date on which the requirements shall take effect. Should the Successful PROPOSER fail or refuse to satisfy the requirement of changed coverage within thirty (30) days following the CITY's written notice, the CITY, at its sole option, may terminate the Contract upon written notice to the PROPOSER, said termination taking effect on the date that the required change in policy coverage would otherwise take effect.
- N. An original or certified sample copy of the signed Certificate or Certificates of Insurance, evidencing that required insurance coverage(s) has been procured by PROPOSER in the types and amount(s) required hereunder, shall be included with the Proposal response.
- O. After award, except as to Worker's Compensation and Employer's Liability, said Certificate(s) shall clearly state that coverage required by the Contract has been endorsed to include the City of Lauderdale Lakes, a political subdivision of the State of Florida, its officers, agents and employees as Additional Insured.

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BID SCHEDULE

Line Item	Description	Quantity	Unit of Measure	Unit Cost	Total
1	Mobilization / Demobilization	1	LS		
2	Demolition and Removal of Existing Fuel Bay Canopy	1	LS		
3	Site Protection, Safety Measures, dust Control and Cleanup	1	LS		
4	Furnish and Install New Structural Steel Fuel Bay Canopy with New foundation, Metal column, Metal Beam and Insulated panel roofing system per plans and specifications. Price include the following but limited to: All materials, equipment's, painting, labors, supervision, insurance, bonds, miscellaneous costs, Contractor's overhead and profit, meeting with staff, etc.	1	LS		
TOTAL					

Line Item	Description	Quantity	Unit of Measure	Unit Cost	Total
5	Permitting Contingency*	1	LS	\$4,500.00	
6	Utility Contingency*	1	LS	\$3,500.00	
TOTAL					

Line Item	Description	Quantity	Unit of Measure	Unit Cost	Total
7	General Contingency(10% of the Overall Construction cost)*	1	10%		
TOTAL					

TBD

ITB26-6310-25B - Fuel Bay Overhead Canopy Replacement
SUBMITTAL PACKAGE

Complete the following information exactly as shown including numbering and tabbing sections. This information is vital for the CITY to rate your firm, as your evaluation and ranking will be based on the information supplied below along with any other information required by the CITY. The detailed proposal should follow the tabs outlined as set forth below as Tabs1 thru 7.

TAB #1 **Qualification Statement**

Complete the 'Vendor Questionnaire' section.

TAB #2 **Statement of Capabilities:**

Provide a statement summarizing in a brief and concise manner to the CONTRACTOR's understanding of the work to be performed, and the commitment to perform the work. Also, include why the vendor believes themselves to be best qualified to perform the services, and that the proposal shall remain in effect for ninety (90) days. In conclusion, an authorized agent of the firm indicating their title or authority must sign attesting to this statement.

TAB #3 **Key Personnel/Project Management Team:**

Submit an outline of the elements and organizational structure of the team established to manage the project. This is to include the administrative operation and key personnel and their area of responsibility.

Also, describe the Contractor's approach to organizational management and the responsibilities of Contractor's management and staff personnel that will perform work for this contract; describe the methodology employed to ensure prompt service, customer satisfaction, prompt complaint resolution, effective employee performance and training. Please explain any differences or challenges you may have encountered with any client, and the method(s) you employed to overcome them.

TAB #4 **Specific Related Experience of the Firm:**

Contractors should state the experience of the firm in providing Fuel Bay Overhead Canopy Replacement services during the past three (3) to five (5) years. Include the Client Reference Listing in this section.

TAB #5 **Current Workload:**

List, for the CONTRACTOR and all major subcontractor's and/or partners firms (list separately):

- Each project currently under contract
- Contract period and duration
- List number of staff assigned

TAB #6 **Cost Schedule:**

Insert proposed cost schedule as seen in the 'Schedule of Bid Items' section

TAB #7 **Attachments:**

All Items found in the 'Vendor Questionnaire' Section

VENDOR QUESTIONNAIRE**Bid Package***

Please upload your bid package here

*Response required

BIDDER'S QUALIFICATIONS STATEMENT

BIDDER shall furnish the following information. Failure to comply with this requirement will render the Bid non-responsive and may cause its rejection. Additional sheets shall be attached as required.

Authorized Representative:*

Please enter the name, title, phone and email of the authorized representative submitting this proposal.

*Response required

Number of years as a Contractor in this type of work:*

*Response required

Names and titles of all officers, partners or individuals doing business under trade name:*

*Response required

The business is a:*

IF USING A FICTITIOUS NAME, SUBMIT EVIDENCE OF COMPLIANCE WITH FLORIDA FICTITIOUS NAME STATUTE.

☐ Sole Proprietorship

☐ Partnership

☐ Corporation

*Response required

If a Partnership, please complete and upload the attached certificate

Please download the below documents, complete, and upload.

- [Certificate for Partnership...](#)

If a Corporation, please complete and upload the attached certificate

Please download the below documents, complete, and upload.

- [Certificate for Corporation...](#)

If a Foreign (Non-Florida) Corporation, please complete and upload the attached document

Please download the below documents, complete, and upload.

- [Foreign \(Non-Florida\) Corpo...](#)

Name, address, and telephone number of Surety Company and agent who will provide the required bonds on this contract:*

*Response required

What is the last project of this nature that you have completed? Include the project value.*

*Response required

Have you ever failed to complete work awarded to you?*

☐ Yes

☐ No

*Response required

When equals "Yes"

If so, when, where, and why?*

*Response required

Have you personally inspected the proposed WORK and do you have a complete plan for its performance?*

☐ Yes

☐ No

*Response required

List CM's or GC's your company has worked for within the past three years.*

Please include the Contact Person's name, phone and email

*Response required

List three SIGNIFICANT PROJECTS completed within the past five years.*

Please include the project name, location, date completed, contract \$ amount, contracting Agency/Owner, and the contact person's name, phone and email

*Response required

List the pertinent experience of the key individuals of your organization (attach a sheet below, if necessary).*

*Response required

Experience of Key Individuals attachment (optional upload)

State the name and licensing of the individual who will have personal supervision of the Work.*

*Response required

What equipment do you own that is available for the Work? (Attach additional sheets as necessary)*

*Response required

Equipment (optional upload)

What equipment will you purchase for the proposed Work?*

*Response required

What equipment will you rent for the proposed Work?*

*Response required

Please attach certificate of status, competency, and/or state registration.*

*Response required

Please confirm*

The BIDDER acknowledges and understands that the information contained in this response shall be relied upon by CITY in awarding the contract and such information is warranted by BIDDER to be true. The discovery of any omission or misstatement that materially affects the BIDDER'S qualifications to perform under the contract shall cause the CITY to reject the Bid, and if after the award, to cancel and terminate the award and/or contract.

☐ Please confirm

*Response required

REQUIRED FORMS

BID BOND*

Please download the below documents, complete, and upload.

- [Bid Bond.pdf](#)

*Response required

CERTIFICATE AND AFFIDAVIT FOR BONDS*

Please download the below documents, complete, and upload.

- [Certificate and Affidavit f...](#)

*Response required

Will you sublet any part of this Work?*

- ☐ Yes
☐ No

*Response required

When equals "Yes"

If so, give details.*

*Response required

When equals "Yes"

Please complete*

Please download the below documents, complete, and upload.

- [SUB-CONTRACTORS.pdf](#)

*Response required

PRINCIPAL MATERIALS MANUFACTURER AND SUBCONTRACTORS*

Please download the below documents, complete, and upload.

- [Principal Materials Manufac...](#)

*Response required

CONFIRMATION OF DRUG-FREE WORKPLACE*

IDENTICAL TIE BIDS: Preference shall be given to businesses with drug-free workplace programs. Whenever two or more bids which are equal with respect to price, quantity, and service are received by the State or by any political subdivision for the procurement of commodities or contractual services, a bid received from a business that certifies that it has implemented a drug-free workplace program shall be given preference in the award process. Established procedures for processing tie bids will be followed if none of the tied vendors have a drug-free workplace program (Florida Statutes Section 287.087). In order to have a drug-free workplace program, a business shall:

1. Publish a statement notifying employees that the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance is prohibited in the workplace and specifying the actions that will be taken against employees for violations of such prohibition.
2. Inform employees about the dangers of drug abuse in the workplace, the business's policy of maintaining a drug-free workplace, and available drug counseling, rehabilitation, and employee assistance programs, and the penalties that may be imposed upon employees for drug abuse violations.
3. Give each employee engaged in providing the commodities or contractual services that are under bid a copy of the statement specified in subsection (1).
4. In the statement specified in subsection (1), notify the employees that, as a condition of working on the commodities or contractual services that are under bid, the employee will abide by the terms of the statement and will notify the employer of any conviction of, or plea of guilty or nolo contendere to, any violation of Chapter 893 or of any controlled substance law of the United States or any state, for a violation occurring in the workplace no later than five (5) days after such conviction.

5. Impose a sanction on, or require the satisfactory participation in a drug abuse assistance or rehabilitation program if such is available in the employee's community, by any employee who is so convicted.

6. Make a good faith effort to continue to maintain a drug-free workplace through implementation of this section.

7. Your firm's Drug-Free Workplace Policy must be attached to this executed form and submitted with the Bid Documents.

As the person authorized to sign the statement, I certify that this firm complies fully with the above requirements.

☐ Please confirm

*Response required

NON-COLLUSION AFFIDAVIT*

Please download the below documents, complete and have notarized. An online notarization option will be provided for you when responding.

- [Non-Collusion Affidavit.pdf](#)

*Response required

WARRANTIES*

Please download the below documents, complete, and upload.

- [Warranties.pdf](#)

*Response required

E-VERIFY AFFIRMATION STATEMENT*

Per Florida State Statutes, Chapter 448.095(2), effective January 1, 2021, no public contract can be entered into without an E-Verify certificate. This applies to both prime Contractors and Subcontractors. It is the responsibility of the prime Contractor to verify compliance with Subcontractors.

A certificate of compliance must accompany this affirmation.

Contractor/Proposer/Bidder acknowledges and agrees to utilize the U.S. Department of Homeland Security's E-Verify system to verify the employment eligibility of:

- a) All persons employed by Contractor/Proposer/Bidder to perform employment duties within Florida during the term of the Contract, and,
- b) All persons (including subcontractors/vendors) assigned by Contractor/Proposer/Bidder to perform work pursuant to the Contract.

The Contractor/Proposer/Bidder acknowledges and agrees that use of the U.S. Department of Homeland Security's E-Verify system during the term of the Contract is a condition of the Contract.

☐ Please confirm

*Response required

LICENSE NUMBER*

Please attach a copy below

*Response required

LICENSE*

Attach certificate of competency, state registration and any other applicable licenses.

*Response required

FEDERAL TAX ID#*

*Response required

CRIMINAL BACKGROUND SCREENING*

Please download the below documents, complete and have notarized. An online notarization option will be provided for you when responding.

- [Criminal Background Screeni...](#)

*Response required

DEBARMENT CERTIFICATION*

49 CFR Part 29- Appendix B

CERTIFICATION REGARDING DEBARMENT, SUSPENSION, INELIGIBILITY AND VOLUNTARY EXCLUSION--
LOWER TIER COVERED TRANSACTIONS

Instructions for Certification

1. By signing and submitting this proposal, the prospective lower tier participant is providing the certification set out below.
2. The certification in this clause is a material representation of fact upon which reliance was placed when this transaction was entered into. If it is later determined that the prospective lower tier participant knowingly rendered an erroneous certification, in addition to other remedies available to the Federal Government the department or agency with which this transaction originated may pursue available remedies, including suspension and/or debarment.
3. The prospective lower tier participant shall provide immediate written notice to the person to which this proposal is submitted if at any time the prospective lower tier participant learns that its certification was erroneous when submitted or had become erroneous by reason of changed circumstances.
4. The terms covered transaction, debarred, suspended, ineligible, lower tier covered transaction, participant, person, primary covered transaction, principal, proposal, and voluntarily excluded, as used in this clause, have the meaning set out in the Definitions and Coverage sections of rules implementing Executive Order 12549. You may contact the person to which this proposal is submitted for assistance in obtaining a copy of those regulations.
5. The prospective lower tier participant agrees by submitting this proposal that, should the proposed covered transaction be entered into, it shall not knowingly enter into any lower tier covered transaction with a person who is proposed for debarment under 48 CFR Part 9, Subpart 9.4, debarred, suspended, declared ineligible, or voluntarily excluded from participation in this covered transaction, unless authorized by the department or agency with which this transaction originated.
6. The prospective lower tier participant further agrees by submitting this proposal that it will include this clause titled "Certification Regarding Debarment, Suspension, Ineligibility and Voluntary Exclusion-Lower Tier Covered Transaction," without modification, in all lower tier covered transactions and in all solicitations for lower tier covered transactions.
7. A participant in a covered transaction may rely upon a certification of a prospective participant in a lower tier covered transaction that it is not proposed for debarment under 48 CFR Part 9, Subpart 9.4, debarred, suspended, ineligible, or voluntarily excluded from covered transactions, unless it knows that the certification is erroneous. A participant may decide the method and frequency by which it determines the eligibility of its principals. Each participant may, but is not required to, check the List of Parties Excluded from Federal Procurement and Non-procurement Programs.
8. Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render in good faith the certification required by this clause. The knowledge and information of a participant is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.
9. Except for transactions authorized under paragraph 5 of these instructions: if a participant in a covered transaction knowingly enters into a lower tier covered transaction with a person who is proposed for debarment under 48 CFR part 9, subpart 9.4, suspended, debarred, ineligible, or voluntary excluded from participation in this transaction, in addition to other remedies available to the Federal Government, the department or agency with which this transaction originated may pursue available remedies, including suspension and/or debarment.

CERTIFICATION REGARDING DEBARMENT, SUSPENSION, INELIGIBILITY AND VOLUNTARY EXCLUSION-LOWER TIER COVERED TRANSACTIONS

(1) The prospective lower tier participant certifies, by submission of this proposal, that neither it nor its principals is presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from participation in this transaction by any Federal department or agency.

(2) Where the prospective lower tier participant is unable to certify to any of the statements in this certification, such prospective participant shall attach an explanation to this proposal.

☐ Please confirm

*Response required

PUBLIC ENTITY CRIMES*

Please download the below documents, complete and have notarized. An online notarization option will be provided for you when responding.

- [Public Entity Crimes.pdf](#)

*Response required

BID FORM ACKNOWLEDGEMENT*

In order to be considered for this project, **the Bidder shall** have successfully completed a minimum of three (3) projects of similar scope and complexity over the past five (5) years, in the State of Florida, and must be able to document the required experience.

- A. The Bidder proposes and agrees, if this Bid is accepted, to enter into a Contract with the City to perform and furnish all Work as specified herein for the Contract Price and within the Contract Period indicated in this Bid.
- B. This Bid will remain subject to acceptance for ninety (90) days after the day of Bid opening. Bidder will sign and submit the necessary documents required by the City within fifteen (15) days after the date of City's Notice of Tentative Award.
- C. In submitting this Bid, Bidder represents, as more fully set forth in the Contract, that
 1. Bidder has examined the Bid Documents, including any addenda issued all of which are hereby acknowledged;
 2. Bidder has familiarized itself with the nature and extent of the Bid Documents, locality, and all local conditions and laws and regulations that in any manner may affect cost, progress, performance or furnishing of the Work.
 3. Bidder has given the City written notice of all conflicts, errors or discrepancies that it has discovered in the Bid Documents and the written resolution thereof by the City is acceptable to Bidder.
- D. Bidder proposes to furnish the Work in conformity with the Specifications and at the Bid Prices referenced below in the Schedule of Bid Prices. The Bid Prices quoted have been checked and certified to be correct. Said Bid Prices are fixed and firm and shall be paid to Bidder for the successful completion of its obligation as specified in the Bid Documents.
- E. It is the intent of the City to award this bid to the lowest responsible and responsive Bidder. The City reserves the right to accept or reject any or all bids and to waive any informality concerning the bids when such rejection or waiver is deemed to be in the best interest of The City of Lauderdale Lakes. The City reserves the right to award the bid on a split order basis, lump sum or individual item basis unless otherwise stated.
- F. Contractor shall furnish all labor, materials, and equipment and perform all the necessary Work in the manner and form provided in the Contract Documents.

G. Bidder accepts the provisions of the Contract as to liquidated damages in the event of failure to complete the Work on time.

☐ Please confirm

*Response required